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DEMOCRATIC REPUBLIC OF CONGO

Human Rights Developments

The Democratic Republic of Congo (DRC) in May entered its third year under the autocratic rule of President Laurent Desiré Kabila, and struggled in August to find a negotiated settlement to a devastating year-long war. The conflict, which initially pitted government troops against the rebel Congolese Rally for Democracy (Rassemblement Congolais pour la Démocratie (RCD)), drew in many regional forces, including the Rwandan, Ugandan, and Burundian armies on the side of the RCD rebels, and the Angolan, Zimbabwean, and Namibian militaries in support of the Kabila government. About a dozen armed groups from the DRC as well as neighboring states also became embroiled in the conflict, including the traditional militia groups known in eastern Congo as the Mai-Mai who struck alliances of convenience with the government out of resentment at the occupation of their region by foreigners. The government was credibly reported to have recruited elements of the extremist Hutu militia and former Rwandan army which had perpetrated the 1994 genocide in their country in which at least 500,000 Tutsis and moderate Hutus were slaughtered.

A military stalemate left the DRC government in control of only the western half of the country. The government claimed that the rebel movements that continued to control the eastern part of the country merely fronted for a foreign invasion by Rwanda, Uganda, and Burundi. These rebel backers claimed that their military presence in the DRC was needed to protect their own national security against extremist ethnic militia operating from safe havens in the DRC to destabilize them. The three countries had invoked the same argument when, in 1996 and 1997, they supported President Kabila's own campaign to oust former dictator Mobutu Sese Sekou. They turned against their former ally when he took steps in August 1998 to end his dependency on them and turned to the same policies of ethnic exclusion towards DRC's ethnic Rwandan nationals adopted by Mobutu, while recruiting exiled Rwandan genocidaires into his own forces. Battle weariness of foreign actors was a contributing factor in the conclusion of a cease-fire agreement in Lusaka in early July. As the national war entered into a relative lull, hostilities flared up unexpectedly in late August in Kisangani between two RCD factions, and their respective backers Rwanda and Uganda.

The government's attempts to intimidate the political opposition, the free press, and the country's dynamic civil society and human rights movements led to severe restriction on the freedoms of expression and association. The government made cosmetic concessions to an ever retreating democratization agenda. It nominally lifted a total ban on political party activities that it had strictly enforced since May 1997 by promulgating a law "liberalizing" political party controls at the end of January, in advance of elections slated at the time for April 1999. Opposition parties were quick to reject the law on grounds of its failure to recognize preexisting parties, and the restrictive conditions it set to establish new ones. The law, for example, gave broad powers to the ministry of interior to suspend or disband parties "in the event of violation of the law and emergency or the risk of serious public disorder."

President Kabila in April disbanded his own Alliance of Democratic Forces for the Liberation of Congo (ADFL), at the head of which he seized power, after accusing its members of "opportunism" and "self-enrichment." The president introduced at its place the Popular People's Committees (CPPs). Elected by local residents, the CPPs were mandated to exercise local government powers throughout

the country. Opposition leaders saw in the CPPs a new incarnation of the vanguard grassroots movement that Kabila previously espoused through the ADFL, and as a means to legitimize his rule at the approach of elections. But the war provided an excuse for the government to delay the elections until the convening of the "national dialogue" on Congo's political future that was pledged in the peace accord. This in turn became a contentious issue as the rebels and the nonviolent opposition alike charged the government with seeking to derail the process.

Government security agencies routinely used the broad accusation of partaking in "political activism" to arbitrarily arrest and detain scores of mid- and local-level opposition activists. Four activists of the opposition Parti Lumumbiste Unifié (PALU) who tried on January 30 to mark the recent legalization of political activities by displaying their party's flag were immediately arrested. On May 17, security services arrested nine other members of PALU and threw them in different lockups. Joseph Kapika, a spokesperson of the main opposition party, the Union for Democracy and Social Progress (UDPS), was arrested in early February following his criticism of the law on political parties during a Voice of America interview. His case was later referred to the Military Order Court on unspecified charges. Fifteen UDPS members arrested on May 28 during a gathering of their party were made to undress at the police station and were whipped. Similar crackdowns occurred in Lubumbashi, the second largest city, where several leaders of the UDPS regional chapter were detained in the last week of July. Three of them were transferred in mid-August to Kinshasa. All of these activists from PALU and UDPS continued to be detained at the time of writing. Others who were freed after shorter detention periods from police and military lockups reported that they were subjected to daily whippings and other forms of cruel, inhuman, or degrading treatment and torture. Prominent leaders of the opposition were effectively reduced to silence after long periods of harsh and degrading detention.

Outspoken journalists were the targets of various forms of harassment. In mid September, security agents prevented Modest Mutinga, editor of the independent newspaper *Le Potentiel*, from leaving the country to attend two conferences abroad on free expression and good governance. On March 15, he was arrested and detained for fifteen days upon his return from attending similar fora. Thierry Kalumba, editor of the *Vision* newspaper, was arrested in mid January for a story on weapon supplies to the rebels. In March he was sentenced to four years in prison by the Court of Military Order for "divulging state secrets."

Weakened by decades of neglect and corruption, the judicial system remained incapable of protecting the citizens from the unbridled actions of the security agencies; nor was it able to guarantee the exercise of basic freedoms protected under Congolese law and international human rights conventions to which the DRC had subscribed. The notorious Court of Military Order, originally established in 1997 to improve discipline within the army, increasingly handed down heavy sentences to civilians on questionable political and security convictions. The court had ordered the execution of 250 people in its two years of existence. There was no appeal to its decisions.

By October, more than 500 former Tutsi internees, whom authorities had rounded up in the capital and Lubumbashi following the outbreak of war in 1998, were able to leave the country peacefully to Rwanda and Burundi, or to seek asylum in Europe and North America. The government authorized their departure following protracted negotiations with the U.N., the International Committee of the Red Cross, and its bilateral partners. It was not clear whether those who had rightful claims to Congolese nationality would be allowed to return in the future.

Forces of the Congolese Rally for Democracy on several occasions massacred scores of civilians. They killed on December 3 at least fifteen civilians, most of them palm oil traders who were heading to a local market, near the village of Lemera in south Kivu. Over the New Year, they massacred up to 500 civilians in and around the village of Makabola in the same region, including workers of the local Red Cross Society, and priests and their families. In mid March, they reportedly massacred at least 109 villagers in the locality of Burhinyi in south Kivu. All these killings reportedly followed losses the rebels sustained in fighting with the Mai-Mai in the vicinity of the targeted villages. The RCD repeatedly promised to investigate these and other similar incidents, and to punish perpetrators, but failed to deliver on such promises.

The rebels cracked down on dissenting voices in areas under their respective control in much the same way as the government did by seeking to intimidate opinion leaders through detention, harsh and degrading treatment, and travel restrictions. Unlike the government, however, the rebels did not accommodate any level of nonviolent political opposition.

Attempts by both the government and rebel alliances to quickly build dependable Congolese armies for their respective camps reportedly led to extensive recruitment of child soldiers throughout the country. Abuses against women by all parties were rampant, and they were frequently the target of sexual violence including rape. Local activists, who assisted some of the victims by arranging medical attention, confirmed the exposure of some in the group to HIV by HIV-positive soldiers. Other rape victims suffered rejection from their husbands and communities.

Defending Human Rights

Both the Kabila government and the rebels stepped up their harassment of Congolese human rights activists during the year in an attempt to intimidate and silence independent witnesses to their abuses. Human rights defenders who were forced to flee the Congo encountered increasing risks in neighboring countries.

On May 29, the Kinshasa police arrested Laurent Kantu Lumpungu, chairman of the independent Association of Prison Officials which had been critical of poor prison conditions and ill-treatment, while he was visiting the capital's central prison and took him to the police station where he was ill-treated. He continued to be arbitrarily detained by mid-October at the same prison he was inspecting for his organization. Government agents on June 25 ransacked the office of Voice of the Voiceless, a leading national monitoring group, following damning reports by the organization on government abuses.

On June 15, 1999, rebel soldiers broke into and ransacked the office of Groupe J6r6mie, an independent monitoring and civic education organization based in Bukavu. J6r6mie had just issued statements criticizing the deterioration of educational and other social services in rebel areas. Raphael Wakenge, of the leading human rights organization H6ritiers de la Justice, Kizito Mushizi and Omba Kamengele, journalists of Radio Maendeleo—which is owned and operated by NGOs,—were detained late August in Bukavu, on charges of "eavesdropping on military communications," and "intelligence with the enemy." Radio Maendeleo and H6ritiers had angered rebel authorities earlier by independently reporting on human rights and political developments in the region. In Kisangani, the rebels in late August briefly detained Claude Olenga, chairman of Commission Justice et Lib6ration, and another member of the group for their suspected opposition to the rebel cause.

The Role of the International Community

Southern African Development Community

Zambia took the lead in mediating the conflict in the DRC on behalf of the Southern African Development Community (SADC). After protracted negotiations, the government and rebels, and their respective foreign allies, agreed on a deal that state actors signed on July 10, although the rebels only signed on in late August after violent internal confrontations. The deal needed significant backing from the U.N. and other leading international actors if it was to succeed in ending the war. It addressed Congo's internal political crisis by providing for a national dialogue by the government, the rebels, and the nonviolent political opposition to agree on new political order for the country. It also addressed the security concerns of Rwanda, Uganda, and Angola by committing all parties to identify and disarm members of armed groups from these countries operating in the DRC and to hand over suspected "genocidal" elements to international prosecutors. The agreement did not provide for accountability for abuses by the RCD rebels and their backers. It also failed to recognize or take into account the grievances of the Mai-Mai and other armed groups involved in the conflict. The accord provided for a joint military commission to oversee its implementation, and for a peacekeeping force with a significant U.N. participation to enforce it on the ground. The international body appeared ill-disposed to a peace-enforcement role as initially requested by the mediators.

United Nations

In January, the DRC's representative to the U.N. charged that the Security Council had made no efforts to put an end to the war raging in his country beyond "making statements." In the months that followed, an undeterred U.N. Security Council repeatedly expressed concern about the continuing war in the DRC in resolutions and presidential statements, but failed to take action to stop it. The council viewed the conflict as threatening to regional peace, security, and stability, and deplored its disastrous humanitarian consequences. This recognition notwithstanding, the U.N. persisted in keeping a low profile in the search for peace, and in the peace mission once the belligerents reached a truce. The council expressed strong support in its communications for the regional mediation process led by Zambia on behalf of SADC and the OAU. In an April resolution, the council welcomed the secretary-general's decision to appoint a special envoy for the peace process for the DRC and requested him to work closely with his OAU counterpart to promote a peaceful resolution to the conflict.

Following the signing of the Lusaka cease-fire agreement, the Security Council unanimously adopted a resolution on August 6 authorizing the deployment for three months of up to ninety U.N. military liaison personnel in the capitals of the belligerent states. Their mandate included the establishment of contacts with the joint military commission formed by the belligerents to oversee the implementation of the truce. The limited mandate reflected the reluctance in the U.N. to consider a peace enforcement operation under Chapter VII of the U.N. Charter, and a certain preference for a military observation mission.

In the meantime, the U.N. Commission on Human Rights maintained its efforts to positively influence human rights developments on the ground. Roberto Garretín, the U.N. special rapporteur for the DRC, returned to the country in February and again in August at the invitation of President Kabila's government. He had been banned since March 1997 after implicating forces of then rebel leader Kabila and their allies of the Rwandan Patriotic Army in the massacre of thousands of Hutu refugees. The government thereafter systematically obstructed the work of the Investigative Team set up by the U.N. secretary-general to circumvent the ban on the special rapporteur, leading to the premature closure of that investigation as well. The fallout between the DRC and Rwanda appeared to have disposed the DRC government for more cooperation with the U.N. In his first meeting with the special rapporteur, on August 28, President Kabila agreed that the investigation could proceed when the security situation allowed, and promised his country's cooperation. The president also promised to investigate reports of rampant arbitrary detention and abuse of detainees that the rapporteur raised. "We will investigate the reasons for their detention and then take a decision on whether or not to free them," explained Bernard She Okitundu, the DRC's human rights minister. Despite the concrete steps that the government took during the year to resume its cooperation with the U.N. and to engage leading international human rights organizations in dialogue, this and similar pledges by the government failed to translate into tangible human rights improvements.

The special rapporteur traveled on both occasions to areas controlled by the main rebel faction. In February he described the situation of fear under which the population lived in eastern Congo due to wide-scale violations of humanitarian law by the rebels and their allies and by irregular militia opposed to them. The rapporteur secured the rebels' agreement to the establishment, as of August, of a branch office at Goma, under the U.N. Human Rights Commission's Field Office in Kinshasa, to monitor the human rights situation in the region. The Field Office in Kinshasa undertook several initiatives during the year to facilitate and encourage dialogue and consensus building between the government and human rights groups around an annual program for the promotion and defense of human rights. A workshop supported by the office in August recommended the abolition of the Military Order Court.

The U.N. Commission on Human Rights decided on April 27, 1999, to extend the mandate of the special rapporteur for the DRC for another year. It also resolved to request him and the special rapporteur on extrajudicial, summary or arbitrary executions, and a member of the Working Group on Enforced or Involuntary Disappearances to investigate the killings of refugees in 1996-1997.

European Union

Like the U.N., the E.U. opted for a low-key role in the mediation efforts. In February, and again in June, the E.U. presidency expressed on the E.U.'s behalf strong support for regional mediation efforts

and condemned the acts of violence perpetrated against civilians by all the parties since the war started. The June presidential declaration pledged support to the plan for "national debate" proposed by President Kabila for bringing about peace. However, the E.U. conditioned its eventual assistance on the independent organization and inclusiveness of the forum. A resolution issued in April by the African, Caribbean, and Pacific-Joint Assembly strongly condemned rampant abuses in the war. The assembly called on all the parties to respect international humanitarian law, and immediately halt the fighting and seek a negotiated settlement.

The E.U. in a presidential declaration welcomed the July 10 Lusaka peace agreement and called on the rebels to sign it. Provided that the belligerent parties themselves respected their own accord, the E.U. pledged support for its implementation, particularly in the areas of resettling civilians displaced by the war, fostering national reconciliation in the DRC, and supporting the country's rehabilitation plans. This pledge was reiterated in a September 3 presidential declaration welcoming the rebels' signing of the accord.

In June the European Commission issued a communication to the European Council and Parliament reviewing the E.U.'s economic cooperation with countries at war in the DRC. The report was intended to avoid the misuse of development funds provided by the E.U. for military purposes. The E.U.'s assistance to the DRC was largely humanitarian, with pledges of funding for the establishment of a state of law, provided that the DRC registered progress along the lines established by the Lome Convention.

United States

The administration directed its energy to the support of the Lusaka mediation process led by President Frederick Chiluba. The skepticism in regional circles about a more direct involvement of the U.S. in the mediation effort was largely bred by the perception that the U.S. had for too long unconditionally supported the leaders of Uganda and Rwanda.

The U.S. issued a strong statement of concern on November 13, 1998 about Rwandan refugee movements from neighboring countries into the DRC, where hundreds were reported to have been recruited by the warring factions. The U.S. publicly condemned the Makabola massacre on January 7, and called on the rebels to investigate the massacre report and to grant independent investigators access to its site. A statement on March 4 condemned war-related human rights abuses by all sides, and called for accountability and the respect of the Geneva Convention regarding the treatment of civilians and noncombatants. The State Department returned to the issue in a March 26 statement by expressing alarm at continued massacre reports from rebel areas, and widespread abuses by the government. On April 1, the U.S. welcomed the national dialogue on Congo's political future announced by President Kabila, but warned that it should be a transparent process.

However, the U.S. interest in pressing for accountability and human rights improvements appeared to have waned as the DRC plunged further into chaos. Peace and regional security became the primary focus in the U.S. public diplomacy. There were scant references to violations by the belligerents and to their obligations to abide by international human rights and humanitarian standards in subsequent statements issued by the Department of State in support of the regional peace process.

The U.S. in fiscal year 1999 dedicated \$ 15 million in supporting programs aimed at encouraging judicial and democratic reforms, and fostering broad-based economic growth and environmental protection, in addition to substantial humanitarian assistance.

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